

23STCV20048 23STCV20048

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Division: Civil Law and Motion

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Case Number: 23STCV20048 Hearing Date: July 6, 2026 Dept: 224

Marquez v. Elvis De La Rosa

TENTATIVE RULING

On November 23, 2026 at 10:00 a.m. the court sets:

Order to Show Cause Regarding Whether the Court May Set a Default Judgment Prove-up Hearing Re: Plaintiff Susana Marquez's Request for Order Quieting Title Re: Real Property located at 1821 E. 109th Place Los Angeles, CA 90059 and Other Relief Sought.

Plaintiff must also give notice of the Order to Show Cause Hearing set for November 23, 2026 to Defendant's last known address. Notice must be given within 10 days, and Proof of service of notice must be filed within 20 days.

Failure to comply with any of the above items will result in the hearing being continued or judgment being denied.

FACTS OF THE CASE:

This action arises out of events transpiring between two neighbors. Plaintiff alleges that Defendant, who is Plaintiff's neighbor, has erected structures on Plaintiff's property, failing to observe her property ownership rights. Plaintiff seeks an order quieting title in 1821 E. 109th Place Los Angeles, CA 90059, and a default judgment for damages for trespass and private nuisance.

PROOF OF SERVICE/DEFAULT:

Default was entered against Defendant Elvis De La Rosa on March 11, 2024. Plaintiff has not filed a default judgment package as is required by the California Rules of Court, and the California Code of Civil Procedure.

Plaintiff should consult resources for self-represented litigants to assist her in putting together a default judgment package that the court needs to review before holding a default judgment prove-up hearing to quiet title in her property. One example of such resources, is at this link:

https://saclaw.org/resource_library/request-a-default-judgment-by-court/

Discussion

California Code of Civil Procedure section 764.010 expressly prohibits the entry of a default judgment in a quiet title action. Instead, "[t]he court shall not enter judgment by default but shall in all cases require evidence of plaintiff's title and hear such evidence as may be offered respecting the claims of any of the defendants." (Code Civ. Proc., § 764.010.)

Although a traditional default judgment is unavailable in a quiet title action based on adverse possession, a plaintiff is not without recourse when properly named defendants fail to respond. After defaults have been entered, the plaintiff may obtain judgment only after the court conducts the statutorily required evidentiary hearing and determines that the plaintiff has established all elements of adverse possession. (Code Civ. Proc., §§ 322–325; Civ. Code, § 1007.)

As explained by the Court of Appeal:

"If a court holds a properly noticed evidentiary hearing and no defendant turns up, then the court renders judgment 'in accordance with the evidence and the law,' based on what it has before it. This would not be a default judgment; any defendant, even one in default, has the right and the opportunity to appear and present evidence. This is another reason for scheduling and holding a hearing in open court; it allows the court to finish the case without falling foul of the statute."

(Harbour Vista, LLC v. HSBC Mortgage Services Inc. (2011) 201 Cal.App.4th 1496, 1508.)

Default Package Required Before the Court Can Schedule A Prove-up Hearing

The Court orders Plaintiff to file a default judgment package that complies with California Rule of Court 3.1800, by no later than October 31, 2026 and serve a copy of all of her filings on Defendant Elvis De La Rosa 1815 E. 109th Place Los Angeles, CA 90059. Plaintiff must inform herself of what items are required in a default judgment package, and file those.

Once Plaintiff has filed a default judgment package that meets the requirements set out in California Rules of Court, Rule 3.1800, and files the declarations and evidence required by that rule, the Court will then set a default prove-up hearing where the Court will hear live testimony and argument and allow the Defendant to appear as is required when there are issues regarding quieting title to property.

The Court can't schedule a default prove-up hearing, until Plaintiff complies with California Rule of Court 3.1800.

Conclusion

On November 23, 2026 at 10:00 a.m. the court sets:

Order to Show Cause Regarding Whether the Court May Set a Default Judgment Prove-up Hearing Re: Plaintiff Susana Marquez's Request for Order Quieting Title Re: Real Property located at 1821 E. 109th Place Los Angeles, CA 90059 and Other Relief Sought.

Plaintiff must also give notice of the Order to Show Cause Hearing set for November 23, 2026 to Defendant's last known address. Notice must be given within 10 days, and Proof of service of notice must be filed within 20 days.

Failure to comply with any of the above items will result in the hearing being continued or judgment being denied.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.